

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DASHAWN B. PRAILEAU,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT,
P.O. HANSON and P.O. ZACARDI,

Defendants.
-----X

Index No.: _____

Filed On: _____

Plaintiffs designate
NEW YORK County
as the place of trial

The basis of venue is
Plaintiff's residence

SUMMONS

Plaintiffs' address
480 St. Nicholas Avenue
New York, NY 10030
County of NEW YORK

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Bronx, New York
March 27, 2015

LAW OFFICES OF
DUBOW, SMITH & MAROTHY
Attorneys for Plaintiff
DASHAWN B. PRAILEAU
Office and Post Office Address
860 Grand Concourse, Suite 1N
Bronx, New York 10451
(718) 402-1990

DEFENDANTS' ADDRESSES

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER HANSON
c/o New York City Police Department
32nd Precinct
250 West 135th Street
New York, New York 10030-2802

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

POLICE OFFICER ZACARDI
c/o New York City Police Department
32nd Precinct
250 West 135th Street
New York, New York 10030-2802

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DASHAWN B. PRAILEAU,

Plaintiff,

-against-

Index No.:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER HANSON and POLICE OFFICER
ZACARDI,

Defendants.
-----X

Plaintiff, by his attorneys **DUBOW, SMITH & MAROTHY**, as and for his Verified
Complaint respectfully alleges, upon information and belief:

1. The plaintiff, at all times herein mentioned was and still is a resident of the
County, City and State of New York.
2. That at all the times hereinafter mentioned, the defendant, THE CITY OF NEW
YORK, hereinafter referred to as "CITY", was and still is a municipal corporation, duly organized
and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendant, CITY, was and still is a
domestic corporation duly organized and existing under and by the virtue of the laws of the
State of New York.
4. That the defendant, CITY, maintains a police force known of the NEW YORK CITY
POLICE DEPARTMENT.
5. That at all the times herein mentioned, the defendant, NEW YORK CITY POLICE
DEPARTMENT, hereinafter referred to as "NYCPD", was and still is a public benefit corporation,
duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times herein mentioned, the defendant, NYCPD was and is an agency of the defendant, CITY.

7. That on September 30, 2014, the plaintiff duly served and filed with the Legal Department of the defendant, CITY, verified Notices of Claim and intent to sue, setting forth the name and post office address of the claimant and his attorneys; the nature of the claim, the time when, and the place where and the manner in which the claims arose, as well as the items of damages and injuries.

8. That said Notice of Claim and intention to sue was served within ninety (90) days after the claim arose and that this action is commenced with one (1) year and ninety (90) days of the happening of the event upon which the claim is based.

9. That more than thirty (30) days have elapsed since the demand for claim upon which this action was founded, was presented to the Legal Department of the defendant CITY, for adjustment and that the defendant, CITY, has neglected and refused to make adjustment or payment thereof for said period of thirty (30) days after such presentation, and that this action is commenced within one (1) year after the cause of action accrued.

10. Pursuant to the General Municipal Law, the Statutory 50-h hearing of the plaintiff was held on November 10, 2014.

11. That on and prior to July 3, 2014, and at all the times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, as agents, servants and/or employees were police officers employed by the defendant, NYCPD, and at all times herein were acting in such capacity as the agents, servants and employees of the defendants CITY and NYCPD.

12. That on and prior to July 3, 2014, and at all the times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, as agents, servants and/or employees were on acting in such capacity as the agents, servant and employee of the defendants CITY and NYCPD.

13. That on July 3, 2014 at approximately 11:30 p.m., Defendants POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were on duty and acting within the scope of their employment and under the direction of the defendants CITY and NYCPD as its agents, servants and/or employees.

14. That on and prior to July 3, 2014, Defendants POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were each hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the defendants CITY and NYCPD.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
ASSAULT AND BATTERY ON DASHAWN B. PRAILEAU**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That on July 3, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DASHAWN B. PRAILEAU, was lawfully present at the premises located at 2360 7th Avenue, New York, NY 10030.

17. That on July 3, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff DASHAWN B. PRAILEAU was assaulted by defendants POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, while acting as agents, servants and/or employees of the defendants CITY and NYCPD.

18. That on July 3, 2014, and at all times hereinafter mentioned and upon information and belief, assault and battery was performed knowingly, intentionally and willfully.

19. That on July 3, 2014, and at all times hereinafter mentioned and upon information and belief, defendants POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, who committed the aforementioned assault and battery upon the plaintiff, DASHAWN B. PRAILEAU, were acting within the scope of their employment with the defendants CITY and NYCPD.

20. That on July 3, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff, DASHAWN B. PRAILEAU, was without probable cause and was not the result of an appropriate arrest.

21. By reason of said assault and battery, the plaintiff was cause to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

22. By the reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF DASHAWN B. PRAILEAU**

23. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. The defendants CITY, NCYPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, DASHAWN B. PRAILEAU.

25. As the result of said negligence, the plaintiff, DASHAWN B. PRAILEAU, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

26. By the reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION ON BEHALF
OF DASHAWN B. PRAILEAU**

27. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. Defendants CITY and NYCPD, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, who assaulted, battered and falsely arrested and violated the civil rights of the plaintiff, DASHAWN B. PRAILEAU.

29. That the defendants, CITY and NYCPD, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, and continued to employ them and allow them to be in contact with the public at large.

30. By the reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF DASHAWN B. PRAILEAU**

31. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. That on July 3, 2014, defendants CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, did search and seize without a court authorized search warrant and grabbed the plaintiff during the arrest process in an unlawful and excessive manner.

33. Defendants CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, DASHAWN B. PRAILEAU, in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

34. Defendants CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were acting under the color of law and within the scope of their authority, displayed deliberate indifference to plaintiff's rights to be free from unreasonable searched and seizures and excessive use of force.

35. Defendants have deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

36. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42. U.S.C.A. Section 1983 as well as other applicable state and federal laws.

37. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were acting under color of law and within their authority as law enforcement officers within the employ of defendants, NYCPD.

38. That the defendants' actions were not privileged or immune.

39. That defendants CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, were not acting with immunity when they deprived plaintiff of his civil rights.

40. By the reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF DASHAWN B. PRAILEAU**

41. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. That on July 3, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, within the scope of their employment, maliciously prosecuted the plaintiff.

43. That as a result of the aforesaid false arrest and confinement, plaintiff, DASHAWN B. PRAILEAU sustained serious permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment opportunities and suffered emotional and physical distress and injuries.

44. By reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF DASHAWN B. PRAILEAU**

45. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The defendants, CITY, NYCPD, POLICE OFFICER HANSON and POLICE OFFICER ZACARDI, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiffs through their actions.

47. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff.

48. That as a result of said intentional and negligent acts, the plaintiff, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

49. By reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
ON BEHALF OF DASHAWN B. PRAILEAU**

50. The plaintiffs repeats and realleges each and every allegation set forth above numbered "1" through "49" inclusive with the same force and effect as if more fully set forth at length herein.

51. The actions of the defendants herein above alleged, were malicious, willful and grossly negligent.

52. Defendants, CITY and NYCPD, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER HANSON and POLICE OFFICER ZACARDI.

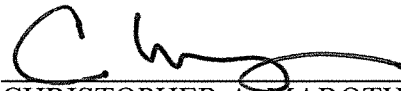
53. By reason of the foregoing, the plaintiff, DASHAWN B. PRAILEAU sustained damages in an amount exceeding the jurisdictional limits of all the Lower Courts.

WHEREFORE, the plaintiff DASHAWN B. PRAILEAU demand judgment both compensatory and exemplary against the defendants which exceeds the jurisdictional limits of all lower courts, on the **FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH and SEVENTH CAUSES OF ACTION** which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, together with the costs, attorneys' fee and disbursements of this action.

Dated: Bronx, New York
March 27, 2015

Yours, etc.

LAW OFFICES OF
DUBOW, SMITH & MAROTHY



CHRISTOPHER A. MAROTHY, ESQ.
Attorney for Plaintiff

DASHAWN B. PRAILEAU
860 Grand Concourse, Suite 1N
Bronx, New York 10451
(718) 402-1990

ATTORNEY'S VERIFICATION

CHRISTOPHER A. MAROTHY, an attorney duly licensed to practice before the Court of the State of New York, affirms the following under penalties of perjury:

I am a member of LAW OFFICES OF DUBOW, SMITH AND MAROTHY, attorney for Plaintiff in the within action.

That I have read the foregoing **COMPLAINT** and know the contents thereof.

That the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, I believe them to be true.

The basis of my knowledge is the file maintained by my office.

I make this verification instead of plaintiff because plaintiff resides in a County other than the one in which I maintain my office.

Dated: Bronx, New York
March 27, 2015

X 
CHRISTOPHER A. MAROTHY

CERTIFICATION

The foregoing **SUMMONS AND VERIFIED COMPLAINT** are hereby certified pursuant to Section 130-1.1-a of the Rules of the Chief Administrator (22NYCRR).

Dated: Bronx, New York
March 27, 2015


CHRISTOPHER A. MAROTHY, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DASHAWN B. PRAILEAU,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER HANSON
and POLICE OFFICER ZACARDI,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF
DUBOW, SMITH & MAROTHY
Attorney for Plaintiff
DASHAWN B. PRAILEAU
860 Grand Concourse, Suite 1N
Bronx, New York 10451
(718) 402-1990

To:

Service of a copy of the within _____ is hereby admitted.

Dated: _____
Attorney(s) for

PLEASE TAKE NOTICE:

NOTICE OF ENTRY: That the within is a (certified) true copy of a(n) _____ entered in the office of the clerk of the
within named court on _____, 20 ____.

NOTICE OF SETTLEMENT: That an Order of which the within is a true copy will be presented for settlement to the Hon.
one of the judges of the within named Court at _____ on _____ 20 ____ at _____ .m

Dated:

Yours, etc.,

TO:

Attorney(s) For

LAW OFFICES OF
DUBOW, SMITH & MAROTHY
Attorney(s) for
Office & P.O. Address
860 Grand Concourse, Suite 1N
Bronx, New York 10451
(718) 402-1990